

SENATE No. 317

The Commonwealth of Massachusetts

PRESENTED BY:

Cynthia Stone Creem

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to ensure equitable access to education, including special education services, for all students in Massachusetts.

PETITION OF:

NAME:

Cynthia Stone Creem

DISTRICT/ADDRESS:

Norfolk and Middlesex

SENATE No. 317

By Ms. Creem, a petition (accompanied by bill, Senate, No. 317) of Cynthia Stone Creem for legislation to ensure equitable access to education, including special education services, for all students in Massachusetts. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 249 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to ensure equitable access to education, including special education services, for all students in Massachusetts.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1I of chapter 69 of the General Laws, as appearing in the 2020
2 Official Edition, is hereby amended by inserting after the fifth paragraph the following
3 paragraph:-

4 In order for the department to: address educational inequities through a data-driven
5 approach; report data in a manner that specifies the demographics of students facing the most
6 significant inequities; and ensure that educational inequities can be effectively identified and
7 addressed; The department shall annually analyze and publish in an easily accessible and user
8 friendly manner the student-specific data provided by school committees and charter schools
9 pursuant to: section 1I of Chapter 69; sections 37G, 2 of 4 10 37H, 37O, 37P, and 89 of Chapter

71 of the General Laws; sections 3 and 7 of Chapter 71A of the General Laws; section 6 of Chapter 71B of the General Laws; section 2A of Chapter 72 of the General Laws; statewide assessment data utilized as a basis for competency determinations pursuant to section 1D of chapter 69 of the General Laws; and any other data required by the federal office of education, provided that said data required by the federal department of education is also student-specific data and can be cross-tabulated. The department shall provide said data in a manner that can be easily cross-tabulated by, at a minimum, the following student status and categories: racial and ethnic group; gender; socioeconomic status; high needs status; English learner status; category of disability; and homeless children and youth, if applicable. The information shall be presented statewide and also disaggregated by school committee, charter school, and individual school in a manner that is anonymized and does not reveal personally identifiable information about an individual student. Publication shall include, but need not be limited to, availability on the department's worldwide web site.

SECTION 2. Said section 1I of said chapter 69, as so appearing, is further amended by striking out, in line 239, the word “and”.

SECTION 3. Said section 1I of said chapter 69, as so appearing, is hereby further amended by inserting after the word “learners”, in line 241, the following words:-- ; and (i) The number of children, by grade level, within each disability category receiving specific special education services, including but not limited to: each related service; assistive technology, including but not limited to augmentative and alternative communication; supplementary aids and services; positive behavioral interventions and supports; behavioral intervention plans; vocational education; travel training; and community-based transition 3 of 4 services; provided further that school districts and charter schools shall only be required to provide said information

33 regarding number of children receiving specific special education services when the department
34 provides school committees with an online web-based IEP application aligned with the special
35 education services requiring reporting under this section.

36 SECTION 4. Section 6 of Chapter 71B of the General Laws, as appearing in the 2020
37 Official Edition, is hereby amended by inserting after the first sentence the following sentences:-
38 School committees shall also annually report to the department, pursuant to regulations
39 promulgated by the department, delivery of specific special education services by each major
40 racial and ethnic group, gender, socioeconomic status, English learner status and whether the
41 child or youth is homeless by age level, including but not limited to delivery of: each related
42 service; assistive technology, including but not limited to augmentative and alternative
43 communication; supplementary aids and services; positive behavioral interventions and supports;
44 behavioral intervention plans; vocational education; travel training; and community-based
45 transition services. This annual reporting by school committees to the department shall only be
46 required when the department provides school committees with an online web-based IEP
47 application aligned with the special education services requiring reporting under this section.
48 This information shall be cross-tabulated by, at a minimum, the following student status and
49 categories: each major racial and ethnic group; gender; socioeconomic status; homeless children
50 and youth; and English learner status. The information shall be presented statewide and also
51 disaggregated by school committee, charter school, and individual school in a manner that is
52 anonymized and does not reveal personally identifiable information about an individual student.

53 SECTION 5. Said section 6 of said Chapter 71B, as so appearing, is hereby further
54 amended by inserting after the word “assignment”, in line 8, the following words:-- or pattern of
55 delivery of specific special education services. 4 of 4

56 SECTION 6. Said section 6 of said Chapter 71B of the General Laws, as so appearing, is
57 hereby further amended by inserting after the word “distribution”, in line 10, the following
58 words:-- or if there is a statistically significant increase in the rates of assignment of students
59 with disabilities to substantially separate classrooms for any racial or ethnic group in any of the
60 10 years following the Governor’s Declaration of a State of Emergency due to COVID-19 in
61 March 2020, as compared to the 2018-19 school year.